

26SMCV01195 26SMCV01195

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a motion to compel arbitration. Plaintiff does not really oppose the motion for the most part. The issue is

this. There are two potential

contracts. One is the Motor Vehicle

Order Agreement (MVOA). It states that

any dispute will be determined by AAA.

There is also the later signed Retail Installment Sale Contract (RISC),

which is required for purchases on credit.

The RISC states that either party may choose to have any dispute covered

therein (which this would) will be arbitrated.

The RISC further provides that plaintiff "may choose the American

Arbitration Association . . . or any other organization to conduct the

arbitration subject to our approval."

Defendant moves to have the matter arbitrated before AAA. Plaintiff apparently would prefer a different

organization, but the court is not sure which one. Defendant apparently likes AAA.

The court will certainly GRANT the motion to compel

arbitration. The issue is the

entity. The court believes that the

later-signed RISC supersedes the MVOA.

The question is whether the provision in the RISC that plaintiff may

choose AAA or any other organization subject to approval means that AAA is

automatically approved but defendant has the sole and absolute discretion to

reject any other entity, or whether that discretion must be reasonable. The court will begin, though, by asking

plaintiff what specific organization plaintiff proposes. Defendant might be ok with that, and if so,

that's the end of the inquiry. If there

is a disagreement, then the court will need to understand what the contract

means and perhaps the reason why defendant still prefers AAA. The court is hoping that the parties can

agree on an agency to conduct the arbitration.

The court notes that plaintiff has not articulated any reason why AAA would not be a reasonable organization for the arbitration, so, absent some strong reason along those lines, and given that the court reads the RISC to the extent it is reasonable to do so to be consistent with the MVOA, the court would be inclined to GRANT the request that AAA be the organization overseeing the arbitration as well if push came to shove.